

1.

CASE #	CASE NAME	HEARING NAME
CVMV2605685	HAWKINS vs RIVERSIDE COUNTY OFFICE OF EDUCATION, A PUBLIC ENTITY	PETITION FOR RELIEF PURSUANT TO GOVERNMENT CODE 946.6

Tentative Ruling:

The opposition for this motion is untimely. Oppositions must be filed by the ninth court day before the hearing (C.C.P. §1005(b)) and served in a manner “reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day” (C.C.P. §1005(c)).

It is within the court’s discretion whether to consider the late opposition. See *Kapitanski v. Von’s Grocery Store* (1983) 146 Cal. App. 3d 29, 32. The Court received an Errata indicating that Defense filed their Opposition in a related case CVRI2603059.

The Court will consider the Opposition. Therefore, the hearing on the motion will be continued to allow Plaintiff an opportunity to file a Reply. Hearing on the motion is continued to **8/21/2026 at 8:30 a.m. in Department 6**. Any Reply is due pursuant to CCP 1005.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304264	ANDERSON vs WRIGHT	MOTION TO SET ASIDE DISMISSAL ON COMPLAINT

Tentative Ruling:

The opposition for this motion is untimely. Oppositions must be filed by the ninth court day before the hearing (C.C.P. §1005(b)) and served in a manner “reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day” (C.C.P. §1005(c)).

It is within the court’s discretion whether to consider the late opposition. See *Kapitanski v. Von’s Grocery Store* (1983) 146 Cal. App. 3d 29, 32. The opposition to this matter was filed on 7/17/2026, only 7 court days prior to the 7/28/2026 hearing date.

The Court will consider the Opposition. Therefore, the hearing on the motion will be continued to allow Plaintiff an opportunity to file a Reply. Hearing on the motion is continued to **8/28/2026 at 8:30 a.m. in Department 6**. Any Reply is due pursuant to CCP 1005.